Office of Research Assurance

Human Subject Research Protections Standard Operating Procedures (SOP)

SOP-102: Cooperative Research – NASA ceding IRB oversight to an External IRB

Number	Effective Date	Version Number	Previous Version
102	9/17/2025	v.4.2	v.4.1

Purpose

A Reliance Acknowledgement (RA) is a formal arrangement between the NASA IRB and an external institution's IRB that establishes oversight responsibilities for human subjects research projects involving collaboration of NASA and external investigators. **ORA:SOP-102** outlines the processes and responsibilities when the NASA IRB relies on an External IRB (i.e., NASA cedes IRB oversight) when NASA is engaged[1] in human subjects research.

Related document **ORA:SOP-101** outlines the process for when the NASA IRB provides oversight of external investigators from an institution holding an active Federalwide Assurance (FWA). Additional options for reducing oversight duplication for collaborators not affiliated with an institution holding an FWA or for those located outside of the United States are detailed in **ORA:SOP-103** and **ORA:SOP-104,** respectively.

In general, NASA does not enter Reliance Acknowledgements with external institutions for research projects determined to be exempt according 14 CFR 1230.104(d), unless limited IRB review is required, or for limited cases in which NASA determines an RA is otherwise appropriate.

Examples of collaborative relationships for which **ORA:SOP-102** *may* apply include:

- NASA PI conducting research at an external, non-NASA institution
- External PI with a NASA Co-I conducting collaborative research at a non-NASA location
- Other instances as determined appropriate

Policy

1. As established at 14 CFR 1230.114(b)(1), when NASA is supporting the research and engaged in the research activities, the NASA Office of Research Assurance (ORA) identifies the appropriate Reviewing IRB.

2. NASA ORA may elect to cede IRB oversight to an external IRB for:

[1] *In general, an institution is considered engaged in a human subjects research project when its employees or agents for the purposes of the research project obtain: (1) data about the subjects of the research through intervention or interaction with them; (2) identifiable private information about the subjects of the research; or (3) the informed consent of human subjects for the research.* [OHRP: Engagement of Institutions in Human Subjects Research (2008)]

a. Human subjects research not conducted on NASA property, and
b. Human subjects research that does not target NASA employees as subjects.

3. The NASA Reliance Acknowledgement (RA) form is used to establish the RA.
    a. The NASA IRB will consult with NASA Office of the General Counsel (OGC) for any substantive proposed changes to the RA forms or policies.
4. The RA must be fully executed by the Director of the OCHMO Office of Research Assurance (ORA) or designee and the signatory official for the Reviewing IRB before NASA investigators engage in human subjects research activities.
5. NASA Office for Research Assurance (ORA) may perform routine post-approval verification activities or for-cause reviews of study records. These oversight activities may be accomplished remotely as appropriate, in collaboration with the external institution's IRB or compliance team.

Responsibilities

The **NASA IRB Office** within the **Office of Research Assurance (ORA)** is responsible for facilitating efficient and accurate execution of the reliance procedures and process.

NASA Principal Investigator

Responsibilities of the ***NASA Principal Investigator*** include, but are not limited to:

1. Initiation of the RA process with the NASA IRB via the eIRB system.
2. Obtaining all applicable NASA committee and departmental approvals as necessary [e.g., safety office, engineering, space medicine] and providing documentation, as applicable, within the study eIRB submission.
3. Waiting to engage in human subjects research activities until:
    a. the Reliance Acknowledgement (RA) has been fully executed by signatory officials at both sites, and
    b. the Reviewing IRB has approved the study, and
    c. documentation of the external approval has been provided within the NASA eIRB, and
    d. The NASA IRB has provided acknowledgment of the external IRB oversight within the eIRB system.
4. Compliance with all submission and reporting requirements of the Reviewing IRB, as outlined in the executed RA.
5. Compliance with the policies and applicable local laws and regulations of the Reviewing IRB.
6. Compliance with NASA policies, SOP, federal regulations, and laws. This includes adherence to NASA's Privacy-related Procedural Requirements (NPR 1382.1) for

safeguarding individual privacy through the protection of personally identifiable information (PII) collected, used, maintained, and/or disseminated.

7. When serving as the Overall PI, they are responsible for ensuring the safe and appropriate performance of research including, but not limited to:
    - monitoring protocol compliance,
    - ensuring all collaborators and study staff are appropriately qualified,
    - have completed Human Subjects Protections training, and
    - have adequate training and resources to conduct the study in alignment with the IRB-approved protocol.
8. When appropriate, the NASA PI should provide a mechanism to receive and address concerns from local study subjects and others about the conduct of research.
9. Confirmation that informed consent forms include the required NASA-specific (i.e., local context) language (e.g., COI language, research costs, data archival, etc.) if applicable.
10. Prompt submission of reportable events (e.g., protocol deviations, Unanticipated Problems Involving Risks to Subjects or Others (UPIRSO), noncompliance, terminations or suspensions) to the NASA IRB as a Report of New Information (RNI) in the eIRB system.
11. Maintenance of documentation from the Reviewing IRB in the eIRB as specified in this SOP (see *Procedures*).
12. Disclosing all real or perceived Conflicts of Interest (COI) to the NASA IRB.
13. All NASA research personnel must disclose financial conflicts of interest to the NASA IRB and comply with any COI management plans that may result.
14. When pertinent to the review of the research, information about the conflict may be shared with the Reviewing IRB.

    a. Investigators must report to the NASA IRB and the Reviewing IRB (when appropriate) any changes in conflict of interest (COI) disclosures and resulting changes in COI management plans related to the research.

Responsibilities of the ***NASA ORA as Relying Site*** include, but are not limited to:

1. The NASA ORA shall communicate any local context issues (i.e., unique NASA considerations) relevant to the research protocol to the NASA PI, and if necessary, the Reviewing IRB.
    a. As needed, verify the completeness and accuracy of information provided to the Reviewing IRB related to NASA-specific local considerations including requirements of applicable regulations, policies, and ancillary review processes as relevant to the specific study or studies for which review is ceded.

i. Informed Consent language: when applicable, provide NASA-specific required language and/or requested substitutions to informed consent documents to the Reviewing IRB.

b. The NASA ORA will confirm that NASA personnel engaged in human subjects research are appropriately qualified to conduct human subjects research, including but not limited to confirmation of human subjects protection training and identification and management of Conflicts of Interest for NASA personnel.

Responsibilities of the ***Reviewing IRB*** include, but are not limited to:

1. Providing the NASA IRB an IRB Point of Contact (POC) for the Reviewing IRB.
2. IRB Review and oversight of the research project.
    a. Conducting review of research according to all applicable regulations and laws, including initial review, continuing review, and review of modifications to previously approved research.
    b. Conducting review of potential unanticipated problems, adverse events, and/or serious or continuing noncompliance.
3. Providing notification to the Overall PI in writing of its determinations and decisions.
4. Making relevant IRB minutes and standard operating procedures available to the NASA IRB upon request.
5. When necessary, conducting on-site or remote post-approval monitoring or audits, unless delegated to NASA IRB.
6. Maintaining an IRB membership that satisfies the requirements of 14 CFR 1230.107 (45 CFR 46.107) and 21 CFR 56.107 and which provides special expertise as needed to adequately assess all aspects of each study.
7. Promptly notifying the NASA IRB if there is a suspension or termination of the External IRB's authorization to review a study.
8. Maintaining appropriate documentation per record retention policies, including an OHRP-approved Federalwide Assurance (FWA) for human subjects research.
9. Reporting to the Sponsor, Federal Agencies, or Other Oversight Entities:
    a. If the Reviewing IRB determines that it must report information to the Sponsor, OHRP, the FDA, and/or other oversight entities, it will notify the NASA IRB within a reasonable time in advance of reporting to allow NASA review of the report.
        i. Should submission of a report to the sponsor/oversight authority be necessary, the Reviewing IRB will share the report with NASA IRB Office for distribution to the NASA IRB and other appropriate NASA officials.
10. Prompt notification of the NASA IRB, in addition to the PI, of the lapse in IRB approval and any applicable corrective action plans.
11. Prompt notification of NASA IRB, in addition to the PI, of any finding of serious and or/continuing noncompliance that may affect the conduct of the research or the safety, rights, or welfare of human subjects.

12. Providing information about suspected research misconduct to the NASA IRB for appropriate investigation and action consistent with NASA policy.

Procedures

Coordination of the RA process is subject to many complicating factors. In general, NASA IRB staff adhere to the following procedures as outlined below. However, there may be situations in which the NASA IRB staff, with concurrence of Office of Research Assurance (ORA) Director, must exercise flexibility when executing a Reliance. ORA may consult with the NASA Office of the General Counsel (OGC) as appropriate.

NASA ceding oversight to an External IRB - Reliance Acknowledgement (RA)

1. Requests for the NASA IRB to cede IRB oversight to an External IRB are integrated into the eIRB submission process.
2. Prior to submitting a request to cede oversight to the NASA IRB, investigators proposing reliance on an external IRB should contact that institution's IRB to ascertain reliance related procedures.
    a. A Point of Contact (POC) for the external IRB should be identified and communicated to the NASA IRB office.
3. Upon receiving a request that an External IRB serve as the Reviewing IRB, the **NASA IRB Office** will:
    a. Establish Points of Contact (POC) at the external site(s) using POC provided by the PI.
        i. The overall PI and NASA PI are copied on correspondence with the Reviewing IRB and/or POC.
    b. Initiate the NASA Reliance Acknowledgement (RA) form and complete the necessary information pertaining to the NASA IRB's role in the acknowledgement.
        i. Confirm the Reviewing IRB can fulfill the responsibilities as outlined in the RA and related SOP.
        ii. Send the NASA RA form to cede to an external IRB to the Office of the Chief Health and Medical Officer (OCHMO) designee for signature.
    c. Provide the Reviewing IRB with the partially executed NASA RA form and applicable SOP and forms.
    d. Upon receipt of the fully executed RA form, NASA IRB staff ensure executed RA has been uploaded to the eIRB system.
4. Documentation related to the reliance is included within the study's eIRB file.
    a. A completed reliance form from each collaborating institution holding an FWA, signed by the responsible Institutional Officials or designees.
    b. Approval documentation of the study issued by the Reviewing IRB.

5. Post-Approval Reporting
    a. Following execution of the RA, information relevant to the ceded study should be uploaded into the eIRB by the **NASA PI** such as:
        i. Documentation of approval from the External IRB, if not already provided.
        ii. Data and safety monitoring plans and reports
        iii. Reportable Events submitted as Reportable New Information (RNI) within the eIRB system.
            1. Protocol Violations
            2. Reports of serious or continuing noncompliance
            3. Unanticipated Problems Involving Risks to Subjects or Others (UPIRSO)
6. Terminating the Acknowledgement(s)
    a. The RA is in effect once fully executed by both the NASA IRB and the Reviewing IRB and continues until the study is closed by the Reviewing IRB.
    b. The NASA IRB may terminate an RA through written notification of termination to the External IRB including the effective end date and reason for termination.
    c. If NASA personnel are no longer active on the study a closure may be submitted through the NASA eIRB system.
        i. Termination of one participating site will not terminate the RA of remaining participating sites or institutions.
7. The NASA IRB, the PI, Relying Sites, and Site Investigators will cooperate and establish effective communication and documentation practices so that all responsibilities outlined by this policy may be fulfilled.

Definitions

Cooperative Research: non-exempt human subjects research that involves more than one institution *engaged* in the research.

Engaged:[2] NASA is considered engaged in human subjects research requiring NASA IRB review when:

1. NASA's employees or agents obtain:
    a. data about the participants of the research through intervention or interaction with them,
    b. identifiable private information or identifiable biospecimens about the participants of research, or
    c. the informed consent of human subjects for the research.
2. Human subjects research per 14 CFR 1230/21 CFR 56:

[2] [OHRP: Engagement of Institutions in Human Subjects Research (2008)]

a. is conducted under a contract or Space Act Agreement identifying NASA IRB as the IRB of Record

b. is conducted on NASA property,

c. includes NASA employees or agents as study participants,

d. uses NASA employees' or agents' identifiable private information or identifiable biospecimens, or

e. uses identifiable private information or identifiable biospecimens from NASA repositories

Institution: [14 CFR 1230.102]: any public or private entity or agency (including federal, state, and other agencies).

Reviewing IRB: The "IRB of Record" to which authority for IRB review and oversight has been ceded by the Relying IRB or Relying Site.

Study Personnel: In addition to the PI, those involved in the conduct of human subjects research in which the persons engaged are in direct contact with research participants consenting and/or collecting data, and/or have access to private and identifiable research data.

Noncompliance: Any action or omission associated with the conduct or oversight of human subjects research that fails to follow (1) the applicable laws, regulations, or NASA policies governing human subject research, or (2) the requirements or determinations of the NASA Institutional Review Board (IRB).

Overall Principal Investigator (PI): The lead principal investigator with ultimate responsibility for conduct and integrity of the research at all sites.

Principal Investigator (PI): The NASA PI or PI that is responsible for coordination with the NASA IRB or the IRB of Record for all of the research sites.

Reliance Acknowledgement (RA): An agreement or 'acknowledgement' entered into by two or more institutions engaged in human subjects research that permits one or more institutions to cede IRB review to another IRB. The signed acknowledgement permits a single IRB to review human subjects research activities for more than one site and documents respective authorities, roles, responsibilities, and communication between an organization providing the ethical review and a participating organization relying on a reviewing IRB.

Relying IRB: The local IRB an institution or organization that has ceded IRB review to another IRB to provide IRB review and oversight for a specific study or set of studies.

Relying Site (Relying Institution): The research site(s) at an institution or organization that has ceded to another institution's IRB to provide review and oversight for a specific study or set of studies. This includes institutions who have ceded IRB Review through an executed Reliance Acknowledgement or collaborating investigators at external sites who have signed Individual Investigator Acknowledgements with the IRB of Record.

Unanticipated Problem Involving Risks to Subjects or Others (UPIRSO):[3] any incident, experience, or outcome that meets all of the following:

1. unexpected (in terms of nature, severity, or frequency) given (a) the procedures described in the research protocol documents, such as the IRB-approved research protocol and

[3] (Office for Human Research Protections (OHRP), 2007)

informed consent document; and (b) the characteristics of the human subject population being studied,
2. is related or possibly related to participation in the research, and
3. suggests that the research places human subjects or others at a greater risk of harm (including physical, psychological, economic, or social harm) related to the research than was previously known or recognized (even if no harm has actually occurred).

References

- 14 CFR 1230.114
- NPR 7100.1
- 45 CFR 46.103(e), 46.114
- 21 CFR 50, 56, 312, and 812
- ICH-GCP (E6)
- AAHRPP Tip Sheet 24: Single IRB or EC Review
- NIH Policy on the Use of a Single Institutional Review Board for Multi-Site Research
- **Engagement of Institutions in Human Subjects Research** U.S. Department of Health and Human Services: Office for Human Research Protections (OHRP) Regulations, Policy & Guidance - October 16, 2008.
- **Extending an FWA to Cover Collaborating Investigators** U.S. Department of Health and Human Services: Office for Human Research Protections (OHRP) - January 31, 2005.
- **Reviewing and Reporting Unanticipated Problems Involving Risks to Subjects or Others and Adverse Events: OHRP Guidance** U.S. Department of Health and Human Services: Office for Human Research Protections (OHRP) January 15, 2007.

Version #	Version Notes:	Originated By:	Approved By:	Date Approved:
v.4.2	Updated formatting, typos, and typographical errors	J. Kissling, J. Green	M. Covington	17Sep2025
v.4.1	Updated engaged definition	J. Ensley Gorshe/J. Green	M. Covington	19Mar2025
v.4	Restructured RA series SOP:100-104. Amended responsibility for COI/training for site personnel to Relying Site.	J. Ensley Gorshe/J. Green	M. Covington	22May2024
v.3	Substantive revisions to process.	P. Weitzel, J. Ensley Gorshe	M. Covington	28Mar2023
v.2		J. Kisenwether	M. Covington	12Nov2020
v.1		J. Christensen	M. Covington	07Jul2020